

ANNEX 5 – Final SI-Handler Report Template



Warsaw, 31/03/2026

FINAL SIR REPORT

Log Number: 11643/2025

SI-Handler: Fundamental Rights Office

Key Points

Operational area

Incident reported: The Fundamental Rights Office received a report from a local NGO, alleging that three Ukrainian citizens asked for asylum at the Border Crossing Point (BCP) [REDACTED] Lithuania, but their request was ignored by Lithuanian border guard officers, and subsequently they were refused entry. According to the report, on 24/09/2025, the Ukrainian citizens were refused entry because they did not have appropriate documentation justifying the purpose and conditions of the stay and had no sufficient means of subsistence. Allegedly, the Ukrainian citizens did not comply with the instructions given by the local officers, hence use of force (handcuffs) was applied. Afterwards, they were turned back to Belarus. The Office launched a SIR procedure to fact-check the allegations of denied access to asylum procedure, and in case the use of force was applied whether it was necessary and proportionate.

Party allegedly involved in the incident: Officers of the host Member State Lithuania (participants in JO Lithuania Land 2025).

Possible violations of fundamental rights enquired:

- Right to asylum (Article 18 of the Charter of Fundamental Rights of the European Union) - NO VIOLATION
- Prohibition of inhuman or degrading treatment (Article 4 of the Charter of Fundamental Rights of the European Union) - NO VIOLATION

Operational area x2, human resources

Conclusion and Impact: The Fundamental Rights Office considers it established that three Ukrainian citizens were present at BCP [REDACTED] on 24/09/2025 but lacks evidence to prove that access to the asylum procedure was denied. Moreover, since the national authorities provided a very detailed and reasoned response, including information about an internal check of the surveillance video, the Office finds it possible that the request for asylum was not voiced and/or withdrawn after the persons concerned received more information about the asylum procedure. In addition, the Office found no evidence as regards the use of force allegedly applied against the persons concerned. This assessment is based on the statement of the national authorities, supported by the Frontex [REDACTED] deployed at BCP [REDACTED] on the day of the incident. In summary, the Office concludes that the fundamental rights of the persons concerned have not been violated by the Lithuanian officers.

Nevertheless, the Office notes with concern the shrinking access to the asylum procedure at EU external borders in Lithuania, which is shaped by legislative framework hindering access to asylum at the green border, restrictive measures for visas and residence permits, and gradually implemented security measures at the border crossing points. Considering these circumstances and the repeated allegations about refused access to the asylum procedure at the border crossing points, the Office underlines that persons in need of protection should have access to fair and efficient asylum procedures with respective safeguards in place.

Lithuania: Final Serious Incident Report #1/2026

Description of the event - Timeline

On 28/10/2025, the Fundamental Rights Office received a report from a local NGO, alleging the following:

- On 24/09/2025, three Ukrainian citizens arrived from Belarus at the Border Crossing Point (BCP) [REDACTED] Lithuania, and asked for asylum. Operational area
- The local officers reportedly ignored their asylum requests and issued a refusal of entry.

- The reasons given for the refusal were that the Ukrainian citizens had no appropriate documentation justifying the purpose and conditions of stay (E) and had no sufficient means of subsistence in relation to the period and form of stay or the means to return to the country of origin or transit (G).
- Allegedly, the Ukrainian citizens did not comply with the instructions given by the local officers, hence use of force (handcuffs) was applied.
- Afterwards, the local officers returned the Ukrainian citizens to Belarus. Reporting tools x2

The Fundamental Rights Office identified a potentially matching [REDACTED] incidents ([REDACTED]), all classified as refusal of entry (E and G).

The Fundamental Rights Office launched Serious Incident Report (SIR) 11643/2025 on 18/11/2025 in order to clarify and fact-check the allegations of denied access to the asylum procedure, and in case the use of force was applied whether it was necessary and proportionate.

Information collected - Contributors/Entities consulted - Follow-up Internal decision making

For the purpose of its investigation, the Fundamental Rights Office [REDACTED]

The Fundamental Rights Office consulted **Frontex operational reporting** and further found that: Human resources, operational area, sensitive operational information x2, reporting tools x2, personal data

- In September 2025, five Frontex [REDACTED] officers were deployed in the BCP [REDACTED] under JO Lithuania Land 2025. The Officers perform their duties [REDACTED].
- On 24/09/2025, one Frontex officer was on duty, [REDACTED].
- The following information was reported in [REDACTED] under report [REDACTED]:
 - o on 24/09/2025, at 09:33, 09:42 and 10:00, the controls were completed at the 1st line checks for [REDACTED] years old Ukrainian males.
 - o All were refused entry, because they had no appropriate documentation justifying the purpose and conditions of stay (E) and had no sufficient means of subsistence in relation to the period and form of stay or the means to return to the country of origin or transit (G).

The Fundamental Rights Office interviewed the Frontex [REDACTED] officer who was on duty on the day of the incident, and provided further details: Human resources, Sensitive operational data, personal data

- From the morning to the afternoon, the Frontex officer [REDACTED] could not recall seeing the persons concerned nor did they notice anything extraordinary.
- The Frontex officer had been working in Lithuania [REDACTED] and recalled only two instances when the use of force was applied. According to the officer, the use of handcuffs is an exceptional measure. As such, even if they had not witnessed said measure being applied, they would know about it as it would have been discussed within the team. Reporting tools x2, operational area

On 18/11/2025, the Fundamental Rights Office reached out to the **Lithuanian authorities**, and on 08/12/2025, received a comprehensive reply to the inquiry, in particular:

- It was confirmed that [REDACTED] incidents N [REDACTED] refer to the case under scrutiny.
- On 24/09/2025, at approximately 09:00 local time, three Ukrainian citizens arrived to BCP [REDACTED]. Although the persons concerned were travelling together, they declared different destinations of their travels: Personal data x4
 - o The first person concerned informed during border checks that the purpose of his travel was to [REDACTED] for a few days, and to go to Norway for 14 days. The person concerned could not provide travel tickets nor any other reservations and only [REDACTED] Euros in his possession instead of the required minimum of 520 Euros for living expenses alone.¹
 - o The second person concerned stated that he was going to Greece [REDACTED] he could not provide any evidence proving that [REDACTED], nor provide respective travel

¹ The conditions for third country nationals to enter the EU laid down in the Article 6(1) of the Regulation (EU) 2016/399 of the European Parliament and of the Council of 9 March 2016 on a Union Code on the rules governing the movement of persons across borders (Schengen Borders Code). The Schengen Practical Handbook sets out the indicative amounts established by the national authorities that must be proven when crossing external borders (means of subsistence).

Personal data x10

tickets to Greece, or accommodation in Lithuania, and only [REDACTED] of the required minimum of 300 Euros for five days stay in Greece. The Lithuanian border guard officers contacted [REDACTED] of the person concerned, who informed that [REDACTED] and [REDACTED] was not aware that [REDACTED] went to Belarus.

- The third person concerned stated that he was going to take a plane to Germany to visit [REDACTED] after spending a few days in Lithuania. However, he could not provide any documents confirming the purpose, means or duration of the trip, [REDACTED] accommodation reservations, a travel ticket or any other documents. The person concerned informed that the overall duration of his travel would have been three weeks, however he did not have the required minimum of means of subsistence [REDACTED], nor could present the means to return.
- Furthermore, the persons concerned explained that their relatives and friends live in the EU and already have humanitarian documents due to the war in Ukraine, and their intention is to join them. They also informed that they do not want to stay in Lithuania, only to transit through. During the interviews and second line checks, none of the persons concerned mentioned the need for asylum.
- In view of the above, three decisions were taken to refuse entry in accordance with Article 6 of the Schengen Borders Code with a justification that the person concerned does not have the relevant documents justifying the purpose and conditions of the stay (E), and does not have sufficient means of subsistence for the duration and nature of the stay or the means to return to the country of origin or transit (G). Only one person concerned signed the Decision of Refusal of Entry at the Border. Operational area
- Afterwards, the persons concerned were escorted to the departure hall to wait [REDACTED] Reporting tools
While waiting in the departure hall, the persons concerned contacted [REDACTED] [REDACTED], as their phone number was displayed on the informational board. As the conversation was carried out on loudspeakers, the Lithuanian border guards heard the entire conversation.
- The Lithuanian border guards did not dissuade the persons concerned from submitting their applications. As the persons concerned were discussing this possibility as a way to legally enter Lithuania, the [REDACTED] Human resources x2
[REDACTED] officer was called in to explain the asylum procedure in detail, in particular:
 - [REDACTED] officer informed that after submitting their asylum applications, the initial steps would be taken as provided by the law, all data would be entered into a database, and they would be granted asylum seeker status.
 - Afterwards, all of them would be placed in the Pabradė Reception Centre of the Asylum and Immigration Agency, where they would await decisions on granting of asylum in Lithuania.
 - If a foreigner leaves the centre during the asylum examination, he or she may submit an asylum application in another EU country, but according to the Dublin III Regulation, the foreigner would be returned to Lithuania.
- After receiving information related to the asylum procedure, all three persons concerned rejected this option and continued insisting on being allowed to enter Lithuania.
- As regards the use of force, the Lithuanian authorities informed that no use of force, nor special measures (handcuffs) were applied. There was a verbal warning that physical force might be used, when the persons concerned refused to comply with the lawful demands of the officers. However, no physical force was used against the persons concerned, as also evidenced by the recordings of the surveillance cameras at the departure hall. During the entire waiting period prior to departure, the persons concerned were not restrained and moved freely both in the departure hall and outside the waiting area. Operational area
- [REDACTED] all three persons [REDACTED] on their own and departed to Belarus.
- The Lithuanian authorities informed that after analysing video recordings, it was concluded that the Lithuanian border guards acted appropriately, their actions were lawful, justified, and in line with the border control procedures, therefore there were no legal grounds to initiate any investigation into the allegations. Reporting tools x2

The Fundamental Rights Office also reached out to [REDACTED] which initially reported about the incident, and received the following information:

- On 24/09/2025, between 10:00 and 11:00 local time, the persons concerned reached out to [REDACTED] [REDACTED] through the general contacts. The receptionist working at the main office could not initially

understand the grounds of the request, and after clarifying that the persons were from Ukraine, referred to a specialist working particularly with the Ukrainians having temporary protection status.

- At the time of the call the persons concerned were at the BCP premises.
- The said specialist, after clarifying that the issue was not related to the Ukrainians who were staying in Lithuania with temporary protection status, referred the case to the monitors of [REDACTED] and informed about the situation at the BCP, who then followed the internal procedures.
- All communications were carried out by phone.
- After they were refused entry to Lithuania, they returned to Belarus and did not approach [REDACTED] again.

Reporting tools x2

Assessment

Allegations of fundamental rights violations in SIR 11643/2025 concerned **the refusal of entry of persons asking for asylum and excessive use force**. The Fundamental Rights Office analysed the report shared by the NGO and the information collected in the course of its inquiry in order to assess (1) the allegations of denied access to asylum procedure and (2) in case the use of force was applied whether it was necessary and proportionate.

1. REGARDING ACCESS TO THE ASYLUM PROCEDURE

Allegations of denied access to the asylum procedure were refuted by the Lithuanian authorities and could not be independently corroborated by the Fundamental Rights Office. Moreover, the Office finds the response of the national authorities to be consistent, reasoned and detailed, and as such a credible account of the reported events.

This assessment is based on the following:

- The sequence and description of the events reported by the national authorities, entirely corresponds with Frontex operational reporting, as well as NGO's provided information.
- The national authorities conducted a thorough internal investigation into the allegations, including the review of recordings of the surveillance cameras at the departure hall.
- The detailed, documented and reasoned description relayed by the national authorities provides a logical framework of reported events, including the description of the situation when the persons concerned made the call to the NGO, and subsequent enquiry about asylum procedure in Lithuania.
- In contrast to the detailed explanation of the situation by the national authorities, beside one call made to the NGO, no further information or evidence was made available to the Office to support the claim that the persons concerned indeed voiced their wish to apply for asylum.

Given the lack of direct evidence or statements of the persons concerned, the Office cannot rule out with certainty whether the persons concerned expressed their wish to apply for asylum and/or voluntarily withdrawn their intention, as explained by the national authorities. However, the Office considers it likely that the persons concerned were provided with requisite information and access to the asylum procedure. Consequently, the Office concludes that the incident did not constitute a violation of the right to asylum.

The Fundamental Rights Office takes additional note of the amendments adopted by the Lithuanian Parliament in April 2023 and "it was agreed to provide for the possibility of turning away irregular migrants who have violated the procedure for crossing the state border in times of a state-level emergency or state of emergency".² According to these amendments, irregular migrants that wish to apply for international protection are either directed to the border crossing points or subjected to the individual assessment at the border procedure [Note. The border guards decide at the green border whether persons crossing the border irregularly have grounds to ask for asylum upon the criteria established by the Ministry of Interior. Note Ends.]. The Office is concerned that these amendments hinder access to asylum at the green border and underlines that all individuals should have the right to apply for asylum, regardless of their mode of entry. In addition to the hindered access to asylum at the green border, the Lithuanian authorities adopted measures possibly affecting access to asylum procedure also at border crossing points. In particular, the Law On the imposition of restrictive measures due to the military aggression against Ukraine. Also gradually introduced security measures (e.g., restricted passenger transportation on regular and non-regular schedule, closure of two border crossing points with Belarus, prohibiting entry on foot and/or bicycle, and other) may restrict access to the asylum procedure.

² Press release, 25/04/2023, the Parliament of the Republic of Lithuania:
https://www.lrs.lt/sip/portal.show?p_r=35403&p_k=2&p_t=284594&p_a=1648&p_kade_id=10

In addition to the above, and in light of repeated allegations of denied access to the asylum procedure at border crossing points with Belarus and Russia, also reported in SIRs 14791/2024, 10508/2025 and 10611/2025, the Fundamental Rights Office expresses its concern and highlights that persons asking for asylum at the border crossing points should have access to fair and efficient asylum procedures with respective safeguards in place.

2. REGARDING THE ALLEGED USE OF FORCE

As to the alleged use of force, the Fundamental Rights Office notes the response of the Lithuanian authorities that “there was a verbal warning that physical force might be used, when the persons concerned refused to comply with the lawful demands of the officers” and no physical force was used. The statement is further corroborated by the following:

- While the national authorities did not find grounds to conduct an investigation into the allegations, they did review the recordings of the surveillance cameras at the departure hall that showed that persons concerned were able to move freely in the departure hall and boarded the bus by themselves.
- The Frontex officer who was on duty on the given day did not notice anything out of ordinary, nor was he informed about any situation suggesting that use of force had been applied.
- The NGO report did not provide any details nor evidence as regards these allegations and did not elaborate on the circumstances of the alleged use of force.

Given the above, the Fundamental Rights Office found no evidence to support that use of force was applied. Consequently, the Office considers the allegation of excessive use of force equally unlikely. As such, as regards the alleged ill-treatment of the persons concerned, the Office concludes that no fundamental rights violation occurred.

Final conclusion - Proposals - Lessons learned

Operational area x2, human resources

The Fundamental Rights Office considers it established that three Ukrainian citizens were present at BCP [REDACTED] on 24/09/2025 but lacks evidence to prove that access to the asylum procedure was denied. Moreover, since the national authorities provided a very detailed and reasoned response, including information about an internal check of the surveillance video, the Office finds it possible that the request for asylum was not voiced and/or withdrawn after the persons concerned received more information about the asylum procedure. In addition, the Office found no evidence as regards the use of force allegedly applied against the persons concerned. This assessment is based on the statement of the national authorities, supported by the Frontex [REDACTED] officer deployed at BCP [REDACTED] on the day of the incident. **In summary, the Office concludes that the fundamental rights of the persons concerned have not been violated by the Lithuanian officers.**

Nevertheless, the Office notes with concern the shrinking access to the asylum procedure at EU external borders in Lithuania, which is shaped by legislative framework hindering access to asylum at the green border, restrictive measures for visas and residence permits, and gradually implemented security measures at the border crossing points. Considering these circumstances and the repeated allegations about refused access to the asylum procedure at the border crossing points, the Office underlines that persons in need of protection should have access to fair and efficient asylum procedures with respective safeguards in place.

Against this background, **the Fundamental Rights Office recommends** the following:

To Frontex:

1. To ensure that all Frontex officers deployed at the border crossing points with Belarus proactively identify and refer persons in need of protection to the relevant authorities in case they are made aware of and/or approached regarding such requests.
2. To ensure that all Frontex officers duly report all incidents that involve persons claiming asylum.

To Lithuanian authorities:

1. To ensure effective access to the asylum procedure to persons in need of protection who arrive at border crossing points.
2. To conduct effective and independent investigations into all allegations of fundamental rights violations at border crossing points and consider providing access to the Fundamental Rights Office to the evidence or internal reports and/or investigation files.